

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504813	SMITH VS WALMART, INC.	MOTION TO COMPEL

Tentative Ruling:

DENY

Walmart stated that, without waiving its objections, and after conducting a diligent search and reasonable inquiry, Walmart does not believe the requested documents exist. Thereafter, Walmart provided amended responses to RPD Nos. 1-3. Walmart's supplemental responses to RPD Nos. 1-3 clearly state that it is producing all it can and its responses are in substantial compliance with CCP § 2031.230. No further responses are required.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600354	LLADO VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendant's Request for Judicial Notice.

OVERRULE the demurrer to causes of action 1,2,3,5,6 and 7. These causes of action have been sufficiently pled.

SUSTAIN the demurrer to the 4th cause of action (dangerous condition/affirmative danger creation), with 30 days leave to amend. The action fails because the County does not own or control the property where the incident occurred. Plaintiff alleges that this cause of action is really a claim for "affirmative danger creation" (negligent undertaking) under Govt. Code § 815.2, but the allegations do not allege that the undertaking was to render services for the plaintiff's protection. Rather, Defendants provided referral services to and for Mineses, a third party. It was not for Plaintiff. The undertaking must be to render services that the defendant should recognize as necessary for the plaintiff's protection. Defendant does not have a duty absent that allegation. To the extent that Plaintiff seeks to recover for "affirmative danger creation" under a general negligence theory, that claim is already encompassed within the first (negligence) and third (negligent referral) causes of action.